



CONSTANCE LAKE FIRST NATION RESIDENTIAL OCCUPANCY AGREEMENT

Between Constance Lake First Nation, Housing Department
and the Tenant named within.

**Issued under the CLFN Housing Policy
approved by Chief and Council, 2026**

*This Agreement is governed by the inherent jurisdiction of Constance Lake First Nation
and the Indian Act, R.S.C. 1985, c. I-5. The Ontario Residential Tenancies Act does not apply.*

CLFN HOUSING DEPARTMENT

P.O. Box 4000, Constance Lake First Nation, ON P0L 1B0



RESIDENTIAL OCCUPANCY AGREEMENT

THIS AGREEMENT is made and entered into on this _____ day of _____, between:

THE LANDLORD:

CONSTANCE LAKE FIRST NATION — HOUSING DEPARTMENT

P.O. Box 4000, Constance Lake First Nation, Ontario P0L 1B0

(hereinafter referred to as the “Landlord” or the “Housing Department”)

— AND —

THE TENANT:

Primary Tenant (full legal name): _____

Co-Tenant (full legal name, if applicable): _____

CLFN Band Membership Number: _____

Date of Birth (Primary): _____

Mailing Address (P.O. Box): _____

Telephone: _____

Email: _____

Emergency Contact (name & phone): _____

(hereinafter referred to as the “Tenant”)

THE RESIDENCE:

Lot Number: _____ Street Name: _____

Unit Type: _____ Bedrooms / Bathrooms: _____

Funding Stream: _____ Allocation Date: _____

Situated within Constance Lake First Nation Reserve, Ontario, (hereinafter referred to as the “Residence” or the “Unit”).

RECITALS

WHEREAS Constance Lake First Nation is the lawful occupier of the lands on which the Residence is situated, pursuant to the *Indian Act*, R.S.C. 1985, c. I-5, and the inherent jurisdiction of Constance Lake First Nation over its lands and members; AND WHEREAS the Tenant has applied for and been allocated the Residence in accordance with the **CLFN Housing Policy approved by Chief and Council in 2026** (the “Housing Policy”); AND WHEREAS the Tenant acknowledges that this Agreement is not subject to the *Residential Tenancies Act, 2006* (Ontario), as that statute does not apply to lands reserved for the Indians within the meaning of the *Constitution Act, 1867*; NOW THEREFORE in consideration of the mutual covenants contained herein, the parties agree as follows:

1. GOVERNING AUTHORITY AND APPLICATION OF THE HOUSING POLICY

- (a) This Agreement is entered into pursuant to the inherent jurisdiction of Constance Lake First Nation, the *Indian Act*, and the policies and resolutions of Chief and Council. It is a private contractual arrangement between the Landlord and the



Tenant.

- (b) The Tenant acknowledges that the *Residential Tenancies Act, 2006* (Ontario) does not apply to this Agreement, that the Landlord and Tenant Board of Ontario has no jurisdiction over this Agreement, and that any dispute arising under this Agreement shall be addressed through the internal grievance process established under the Housing Policy and, where necessary, through the Ontario Superior Court of Justice as a matter of contract law.
- (c) The **CLFN Housing Policy approved by Chief and Council in 2026** is hereby incorporated into this Agreement by reference and forms an integral part of it. In the event of any conflict between this Agreement and the Housing Policy, the Housing Policy shall prevail except where this Agreement expressly states otherwise.
- (d) The Tenant confirms receipt of a copy of the Housing Policy, or alternatively confirms that the Housing Department has made the Housing Policy available for review at its offices and on the CLFN website, and that the Tenant has had the opportunity to ask questions about it prior to signing this Agreement.

2. USE OF THE RESIDENCE

- (a) The Tenant shall use the Residence solely for residential purposes as a primary dwelling and shall not use, or permit any other person to use, the Residence for any commercial, industrial, or other non-residential purpose without the prior written consent of the Housing Department.
- (b) The Tenant shall not use the Residence, or permit it to be used, for any illegal or improper purpose, or in any manner that interferes with the use and enjoyment of neighbouring properties, the peace and good order of the community, or the safety of any person.
- (c) **Smoking.** The Residence is a **smoking-permitted** environment. The Tenant and occupants may smoke or vaporize tobacco and cannabis lawfully within the Residence. The Tenant acknowledges and agrees that:
 - (i) Smoking shall not be permitted in a manner that endangers the safety of any person or the structural integrity of the Residence;
 - (ii) All smoking materials must be extinguished and disposed of safely, and the Tenant assumes full responsibility for any fire or fire-related damage caused by smoking;
 - (iii) The Tenant shall be liable to the Landlord for the full cost of remediating any damage to the Residence arising from smoking — including, without limitation, nicotine or tar staining of walls and ceilings, odour saturation of drywall, flooring, or fixtures, scorch or burn damage, and the cost of professional deep-cleaning or restoration on move-out — recoverable as arrears under Section 4 of this Agreement; and
 - (iv) Smoking shall not be conducted in a manner that interferes with the use and enjoyment of neighbouring properties or that constitutes a nuisance to other community members.
- (d) **Cannabis cultivation, production, and processing — prohibited.** Notwithstanding that the cultivation of cannabis for personal use is lawful under the federal *Cannabis Act* (Canada) up to prescribed limits, the Tenant and all occupants agree, as a condition of this Agreement, that the cultivation, growing, production, manufacture, or processing of cannabis — in any quantity, by any means, and regardless of any personal-use exemption under federal or provincial law — on, within, or about the Residence, its lot, any outbuilding, or any attached or detached structure is **strictly prohibited**. The Tenant acknowledges and agrees that:
 - (i) This prohibition is a reasonable condition of tenancy, given the risks that indoor cultivation poses to the structural integrity, habitability, and insurability of Band housing, including damage from humidity, mold, water infiltration, and unauthorized electrical or ventilation modifications;
 - (ii) Any breach of this clause constitutes a material breach of this Agreement and **immediate grounds for termination** under Section 13.1 of the Housing Policy, without the standard fifteen (15) day cure period;
 - (iii) The Tenant shall be liable to the Landlord for the full cost of any environmental remediation, decontamination, mold abatement, structural repair, electrical restoration, or insurance-related cost arising from any breach of this clause,



recoverable as arrears under Section 4 of this Agreement; and

(iv) Unauthorized alterations made to facilitate cultivation — including any modification to electrical, plumbing, ventilation, or structural systems — may void the Landlord's insurance coverage under Section 8(c), and any resulting cost shall be the Tenant's responsibility.

(e) **Unlawful drugs and unlawful drug-related activity.** In addition to the prohibition in clause (d) above, the Tenant and all occupants shall not, and shall not permit any guest or other person to:

(i) Possess, use, consume, store, or be under the influence of any controlled substance within the meaning of the *Controlled Drugs and Substances Act* (Canada) within the Residence, except for substances lawfully prescribed to the Tenant or an occupant by a licensed medical practitioner and used in accordance with that prescription;

(ii) Manufacture, produce, synthesize, process, package, or prepare any controlled substance, or any precursor chemical, on or within the Residence, its lot, or any attached or detached structure;

(iii) Sell, distribute, traffic, or offer for sale any controlled substance, or any quantity of cannabis, from or in connection with the Residence;

(iv) Store, conceal, or hold for any other person any controlled substance, drug paraphernalia intended for trafficking, or the proceeds of drug-related activity; or

(v) Permit the Residence or any part of it to be used as a meeting place, distribution point, or staging location for any unlawful drug-related activity described in this clause.

(f) **Consequences of unlawful drug breach.** Any breach of clause (e) above constitutes a material breach of this Agreement and shall result in **immediate termination** without the standard fifteen (15) day cure period. The Tenant acknowledges that unlawful drug activity within Band housing poses a direct risk to the community, to other tenants, to children, and to the structural integrity and insurability of the Residence, and that zero tolerance is therefore necessary. The Housing Department shall report any suspected criminal activity to the appropriate police service and may cooperate fully with any resulting investigation or prosecution.

(g) **Search, inspection, and remediation.** Where the Housing Department has reasonable grounds to believe that a breach of clause (d) or (e) has occurred, it may, on twenty-four (24) hours' notice — or without notice in cases of imminent risk — enter and inspect the Residence in accordance with Section 9 of this Agreement. The Tenant shall be responsible for the full cost of any environmental remediation, decontamination, structural repair, or insurance-related cost arising from cannabis cultivation or unlawful drug activity, recoverable as arrears under Section 4.

(h) The Tenant shall maintain quiet enjoyment of the Residence and shall ensure that any household member or guest does not create noise or disturbance after 11:00 p.m.

(i) **Occupancy.** Only the Tenant, the co-Tenant named above, and the dependents listed in Schedule "A" shall occupy the Residence. Any change in household composition exceeding fourteen (14) consecutive days must be reported to the Housing Manager in writing. Unauthorized occupancy may be treated as a breach of this Agreement and addressed under Section 13.4 of the Housing Policy.

Tenant acknowledgement of smoking, cannabis, and drug-related provisions. By Initial: _____
initialling below, the Tenant confirms understanding of and agreement to clauses (c) through (g) above, acknowledges full liability for damage to the Residence arising from smoking, acknowledges that cannabis cultivation is strictly prohibited as a condition of tenancy regardless of federal legality, and acknowledges that any breach of clause (d) or (e) constitutes immediate grounds for termination without a cure period.

3. RENT AND PAYMENT TERMS

3.1 Monthly Rent



The Tenant shall pay to the Landlord monthly rent in the amount of: \$ _____ CDN

Rent shall be paid on or before the **first (1st) day** of each calendar month for the duration of this Agreement. Rent is calculated in accordance with Section 11 of the Housing Policy and shall be reviewed annually.

3.2 Method of Payment

- | | |
|---|---|
| ☐ Pre-authorized debit (preferred) | ☐ Payroll deduction (where applicable) |
| ☐ Interac e-Transfer | ☐ Cheque or money order |

All payments shall be made payable to **Constance Lake First Nation**. The Tenant agrees to provide updated banking information to the Housing Department upon request to facilitate pre-authorized debit.

3.3 First Month's Rent

The Tenant shall pay the first month's rent in full on or before the commencement date of Initial: _____ this Agreement. No occupancy shall commence until the first month's rent is paid.

3.4 Late Payment and NSF Charges

Where any rent payment remains unpaid **fifteen (15) days** past the due date, a late payment Initial: _____ fee of **\$25.00** shall be added to the Tenant's account.

Where a cheque or pre-authorized debit is returned by the financial institution for Initial: _____ insufficient funds, a **\$45.00** NSF fee shall be added to the Tenant's account, in addition to any charges imposed by the financial institution.

3.5 Application of Payments

All payments received from the Tenant shall be applied first to outstanding fees, then to arrears in chronological order from oldest to most recent, and lastly to current rent. The Tenant may not direct the Housing Department to apply payments otherwise.

4. ARREARS, REPAYMENT ARRANGEMENTS, AND DEFAULT

4.1 Notification and Repayment Arrangements

Where the Tenant fails to pay rent in full by the due date, the Housing Manager shall initiate the arrears escalation process set out in Section 12.3 of the Housing Policy. The Tenant is strongly encouraged to contact the Housing Manager immediately upon any anticipated or actual missed payment to establish a written repayment arrangement under Section 12.2 of the Housing Policy.

4.2 Minimum Repayment Schedule

Repayment arrangements shall apply the minimum repayment formula established under Section 12.2 of the Housing Policy. The terms shall be documented in a written Repayment Agreement signed by the Tenant and retained on file.

4.3 Default and Termination for Non-Payment

Persistent non-payment, combined with failure by the Tenant to engage with the Housing Department to establish or maintain a repayment arrangement, shall result in default and may lead to termination of this Agreement in accordance with the escalation steps and timelines specified in Sections 12.3 to 12.5 of the Housing Policy. The Tenant acknowledges that the Housing Department's right to terminate is governed by the Housing Policy and not by the *Residential Tenancies Act, 2006*



(Ontario).

4.4 Recovery from Other Band Payments

Where arrears remain unpaid and a Repayment Agreement has not been honoured, the Tenant consents to the recovery of arrears from any monetary payments administered by Constance Lake First Nation on behalf of the Tenant, in accordance with the withholding mechanism set out in the Housing Policy.

5. TERM OF THE AGREEMENT

This Agreement commences on _____ and continues month-to-month thereafter, subject to Section 12.

The Tenant's continued occupancy is conditional upon continued compliance with this Agreement and the Housing Policy.

6. TENANT RESPONSIBILITIES

In addition to the obligations contained elsewhere in this Agreement and in the Housing Policy (in particular Section 13), the Tenant shall:

- (a) Maintain the Residence and its yard and ditch areas in a clean, sanitary, and structurally sound condition;
- (b) Promptly report to the Housing Manager, in writing, any required repairs, damage, hazards, or conditions that may cause damage to the Residence;
- (c) Permit authorized staff, contractors, and inspectors to enter the Residence for inspection, maintenance, and repair purposes, subject to reasonable notice under Section 9 below;
- (d) Not undertake any alterations, additions, renovations, or modifications (including painting, fixtures, and structural changes) without the prior written approval of the Housing Manager under Section 13.1 of the Housing Policy;
- (e) Not remove kitchen or washroom fixtures upon vacating — including cabinets, bath sets, tubs, toilets, or other fixed items — failing which a financial penalty shall be charged to the Tenant's account;
- (f) Ensure that household members, occupants, and guests conduct themselves in a manner that does not endanger any person or damage the Residence;
- (g) Comply with all applicable building, housing, health, fire, and safety codes;
- (h) Submit to the inspection regime described in Section 9 of this Agreement and Section 13 of the Housing Policy.

7. UTILITIES

- (a) The Tenant shall transfer all applicable utility accounts (including electricity, telephone, internet, and any other metered service) into the Tenant's name within **thirty (30) calendar days** of taking possession of the Residence and shall maintain those accounts in good standing throughout the Term.
- (b) Default on utility obligations resulting in service disconnection, or in any risk of damage to the Residence (including freezing), may constitute a breach of this Agreement.
- (c) Where Constance Lake First Nation pays a utility account on the Tenant's behalf to prevent disconnection or damage, the amount paid shall be added to the Tenant's account and is recoverable in the same manner as rent arrears, including through the withholding mechanism in Section 4.4 above.

8. INSURANCE

- (a) **Building insurance.** Constance Lake First Nation shall maintain fire insurance for the full replacement value of the Residence. This coverage applies to the building only. Any loss is payable to the Housing Program.



- (b) **Tenant content insurance.** Constance Lake First Nation does not insure the Tenant's personal property. The Tenant is solely responsible for obtaining content insurance and personal liability coverage. The Landlord shall not be held liable for damage to or loss of the Tenant's personal property arising from any cause.
- (c) **Unauthorized alterations.** Any renovation, addition, or modification undertaken without prior written approval may void the Landlord's insurance coverage, and any resulting cost or loss shall be the Tenant's responsibility.

9. INSPECTIONS AND ENTRY

- (a) **Move-in inspection.** A joint move-in inspection shall be completed by the Housing Manager and the Tenant on or before the commencement date, and the resulting condition report shall be signed by both parties and retained on file.
- (b) **Annual inspections.** The Housing Department shall conduct at least one annual inspection of the Residence, with a target of bi-annual inspections where resources permit. The Tenant shall be given **twenty-four (24) hours** written notice in advance of any non-emergency inspection.
- (c) **Emergency entry.** The Housing Department may enter the Residence without notice in the event of an emergency, including (without limitation) fire, flood, gas leak, or risk of imminent harm to persons or property.
- (d) **Refusal of inspection.** Where the Tenant refuses or repeatedly fails to permit a scheduled inspection, the Housing Manager shall document the refusal and may escalate the matter to the Executive Director and treat the refusal as a breach of this Agreement.
- (e) **Move-out inspection.** A move-out inspection shall be completed at the conclusion of the tenancy and shall be assessed against the move-in report. Damage beyond reasonable wear and tear shall be charged to the Tenant's account.

10. PETS

The Tenant may keep pets in the Residence provided that they are controlled at all times, do not cause nuisance or pose a safety risk to others, and that any damage caused by a pet is remediated at the Tenant's sole expense.

11. DAMAGE, VANDALISM, AND MAINTENANCE COST RECOVERY

- (a) The Tenant is responsible for the cost of repairing or replacing any damage to the Residence caused by the Tenant, an occupant, or a guest, beyond reasonable wear and tear.
- (b) Where damage results from negligence, wilful misconduct, vandalism, or unauthorized alteration, the full cost of remediation shall be charged to the Tenant's account.
- (c) Charges under this Section may be recovered as arrears under Sections 4.3 and 4.4 above.

12. TERMINATION OF THE AGREEMENT

12.1 Termination by the Tenant

The Tenant may terminate this Agreement at any time by giving the Housing Department written notice of at least **thirty (30) days**. The Tenant remains responsible for rent and any other obligations under this Agreement until the effective termination date and until the Residence is fully vacated and the keys returned.

12.2 Termination by the Landlord

The Housing Department may terminate this Agreement in accordance with the grounds and procedures set out in the Housing Policy, including:

- (i) Persistent non-payment of rent, in accordance with Section 12.3 of the Housing Policy;



- (ii) Material breach of this Agreement or of the Housing Policy that is not remedied within fifteen (15) days of written notice;
- (iii) Any breach of Section 2(d) of this Agreement concerning cannabis cultivation, or Section 2(e) concerning unlawful drug activity — for which immediate termination applies without the standard cure period;
- (iv) Persistent failure to remediate damage to the Residence caused by smoking under Section 2(c);
- (v) Damage to the Residence resulting from negligence or wilful misconduct;
- (vi) Abandonment of the Residence, as defined in Section 12.4 below;
- (vii) Any other ground specified in the Housing Policy.

12.3 Surrender on Termination

On the effective date of termination, the Tenant shall: (a) vacate the Residence and remove all personal property; (b) leave the Residence in a clean and sanitary condition, subject only to reasonable wear and tear; (c) return all keys, fobs, and access devices to the Housing Department; and (d) provide a forwarding address for correspondence and any refund or final statement.

12.4 Abandonment

Absence of the Tenant from the Residence for **thirty (30) consecutive days** or more, while rent or other charges remain unpaid, constitutes abandonment. The Housing Department may re-enter and re-allocate the Residence and may dispose of any personal property left behind in accordance with the Housing Policy.

12.5 Holdover

Where the Tenant remains in occupation after the effective date of termination without the written consent of the Housing Department, the Tenant shall be liable for the rent that would otherwise have been payable, plus any costs incurred by the Housing Department in obtaining vacant possession.

13. ASSIGNMENT AND SUBLETTING

The Tenant shall not assign this Agreement, sublet the Residence, or grant any licence to occupy any part of the Residence, without the prior written consent of the Housing Department. Any purported assignment, sublet, or licence without such consent shall be void and shall constitute a material breach of this Agreement, addressable under Section 13.5 of the Housing Policy.

14. MARITAL BREAKDOWN AND DOMESTIC VIOLENCE

Where the tenancy is affected by marital breakdown or domestic violence, the matter shall be addressed in accordance with Section 15 of the Housing Policy. The Housing Department may, in consultation with the affected parties and with appropriate supports, vary the occupancy arrangements under this Agreement.

15. DEATH OF THE TENANT

In the event of the death of the Tenant, succession of tenancy shall be addressed in accordance with Section 16 of the Housing Policy.

16. INCARCERATION

Incarceration of the Tenant for any period exceeding ninety (90) consecutive days shall be addressed under Section 13.6 of the Housing Policy.



17. NO INTEREST IN LAND

This Agreement grants the Tenant a personal right of occupation of the Residence only. It does not create, transfer, or imply any interest in the land on which the Residence is situated, nor does it confer any allotment under Section 20 of the *Indian Act*.

18. NOTICE

Any notice required under this Agreement shall be in writing and shall be delivered by hand, by registered mail, by email to the address provided by the recipient, or by posting on the door of the Residence. Notice is deemed received: on delivery if by hand or posting; five (5) days after mailing; or on the next business day if sent by email.

19. DISPUTE RESOLUTION AND JURISDICTION

- (a) **Internal grievance.** Any dispute arising under this Agreement shall first be raised through the internal grievance process established by the Housing Policy.
- (b) **Court of competent jurisdiction.** Where the dispute cannot be resolved internally, the parties acknowledge that the Ontario Superior Court of Justice has jurisdiction to hear and determine matters arising under this Agreement as a matter of contract law, including the issuance of eviction orders. The parties expressly acknowledge that the Ontario Landlord and Tenant Board has **no jurisdiction** over this Agreement.
- (c) **Governing law.** This Agreement shall be interpreted in accordance with the laws of Constance Lake First Nation, the *Indian Act*, and, where not in conflict, the common law of Ontario.

20. GENERAL PROVISIONS

- (a) **Entire agreement.** This Agreement, together with the Housing Policy and any schedules attached, constitutes the entire agreement between the parties and supersedes all prior written or oral covenants and representations relating to the Residence.
- (b) **Amendment.** No amendment to this Agreement is binding unless made in writing and signed by both parties. Amendments to the Housing Policy do not require re-execution of this Agreement; the Housing Policy as amended from time to time governs by reference.
- (c) **Severability.** If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall continue in full force and effect.
- (d) **Waiver.** No failure by the Landlord to enforce any provision of this Agreement shall be deemed a waiver of that provision or of any other provision.
- (e) **Binding effect.** This Agreement binds the parties and their respective heirs, executors, administrators, and permitted successors.
- (f) **Headings.** Headings are for convenience only and shall not be used to interpret this Agreement.
- (g) **Legal costs.** Where the Landlord is required to engage legal counsel or a collection agency to enforce this Agreement or recover arrears or damages, the Tenant shall indemnify the Landlord for all reasonable legal fees and out-of-pocket costs.



21. ACKNOWLEDGEMENT AND SIGNATURES

The parties acknowledge that they have read this Agreement in full, that they understand its terms, that they have had the opportunity to seek independent advice, and that they agree to be bound by it and by the CLFN Housing Policy (2026) incorporated by reference.

Tenant Acknowledgement: By initialling below, the Tenant confirms understanding that this Agreement is governed by the inherent jurisdiction of Constance Lake First Nation and the *Indian Act*, and that the Ontario *Residential Tenancies Act, 2006* does not apply.

Tenant Initial: _____

FOR THE LANDLORD — CONSTANCE LAKE FIRST NATION HOUSING DEPARTMENT

Signature: _____ Date: _____

Print Name: _____ Title: _____

FOR THE TENANT

Signature (Primary Tenant): _____ Date: _____

Print Name: _____

Signature (Co-Tenant): _____ Date: _____

Print Name: _____

WITNESS

Signature: _____ Date: _____

Print Name: _____



A. SCHEDULE A — AUTHORIZED OCCUPANTS

The following persons, in addition to the Primary Tenant and Co-Tenant named on page 2, are authorized to occupy the Residence as part of the Tenant's household. Any change to this list must be reported in writing to the Housing Manager.

#	Full Name	Relationship to Tenant	Date of Birth	Band Member (Y/N)
1				
2				
3				
4				
5				
6				

End of Agreement. Form LEASE-001 — CLFN Housing Department — Issued under the CLFN Housing Policy (2026).